

RESIDENTIAL HOME IMPROVEMENT CONTRACT

Kitchen Remodel — Structural Wall Removal & Cabinet Replacement

This Home Improvement Contract (“Contract”) is made on _____, 2026, between:

CONTRACTOR: _____ [legal business name], a _____ [sole proprietor / LLC / corp.] with a principal place of business at _____, New York, holding Home Improvement License No. _____ [if required by the county] (“Contractor”).

OWNER: _____ and _____ Macone, homeowners of the property at _____ Prospect Street, _____, New York _____ [ZIP] (“Owner”).

Contractor and Owner are each a “Party” and together the “Parties.”

1. SCOPE OF WORK

Contractor will furnish the labor, supervision, tools, and equipment to perform the following Work at the Property (“Work”):

(a) Structural — Remove two (2) existing load-bearing interior kitchen walls to create an open floor plan; provide temporary shoring during removal; install engineered support beam(s) and posts/bearing per a New York State licensed professional engineer’s stamped design.

(b) Permits & Engineering — Coordinate and obtain the required building permit and the licensed structural engineer’s stamped beam design (Owner-paid pass-through costs — see §4).

(c) Electrical — Relocate and re-wire to code any outlets, switches, and wiring located within the removed walls.

(d) Drywall & Patch — Close, tape, mud, and finish the ceiling and adjacent wall surfaces to a paint-ready condition where the walls were removed.

(e) Flooring — Patch and infill the flooring in the footprint of the removed walls.

(f) Cabinetry — Remove and haul away all existing kitchen cabinets; furnish installation labor for the new Owner-purchased Home Depot cabinets (approximately _____ linear feet).

Exclusions. Any work not expressly listed above is excluded, including but not limited to: countertops, backsplash, appliances, plumbing relocation, final painting/priming, and any asbestos, lead, or mold abatement — unless added by a signed written Change Order.

2. MATERIALS — OWNER-SUPPLIED

(a) Owner shall purchase and pay for **ALL materials directly from The Home Depot**, in full and in advance of the phase of Work in which they are used. This includes the cabinets, structural beam(s) and hardware, electrical materials, drywall, flooring-patch materials, fasteners, and all finish materials.

(b) Contractor is **not responsible** for the cost, price changes, availability, delivery timing, defects, or warranty of Owner-supplied materials. Work delayed by late, insufficient, back-ordered, or defective Owner-supplied materials extends the completion date day-for-day and may be billed as a Change Order for any return trips or remobilization.

(c) Manufacturer warranties on all materials run to Owner. Contractor warrants only its installation workmanship (see §9).

(d) Owner shall ensure the required materials are delivered and on site before each applicable phase begins.

3. CONTRACT PRICE — LABOR

(a) The price for Contractor's labor and services is **\$22,000.00** ("Contract Price"). This is **labor only** and does not include materials (§2) or the pass-through costs in §4.

(b) Payment schedule — three payments:

#	Milestone	Amount
1	Down payment — due at signing, to schedule and commence	\$7,333.33

#	Milestone	Amount
2	Progress payment — due when the structural phase is complete (both walls removed, beam & posts set, inspection passed)	\$7,333.33
3	Final payment — due at Substantial Completion (new cabinets installed, site cleaned)	\$7,333.34

(c) Each payment is due within three (3) days of reaching its milestone. Payments not made when due accrue interest at 1.5% per month and entitle Contractor to suspend Work under §10.

4. PERMITS, ENGINEERING & GOVERNMENT FEES (OWNER-PAID PASS-THROUGH)

Not part of Contractor's labor price. Paid by Owner directly, or reimbursed to Contractor **at cost with no markup**:

- Structural engineer's stamped beam design — est. **\$800 – \$2,000**
- Building permit and inspection fees — est. **\$500 – \$1,500**

Contractor acts as Owner's agent for the limited purpose of obtaining these.

5. TIME OF PERFORMANCE

Start: on or about _____, 2026 — after this Contract is signed, the down payment is received, the permit is issued, and materials are on site. **Substantial Completion:** approximately _____ weeks after start, subject to extension for Change Orders, concealed/unforeseen conditions, weather, inspection scheduling, and Owner-caused or material-supply delays.

6. CONCEALED / UNFORESEEN CONDITIONS

Opening walls can reveal hidden conditions (additional load paths, undisclosed wiring or plumbing, prior code violations, water/pest/structural damage, or hazardous materials). If concealed conditions differ from what was reasonably

visible when this Contract was priced, Contractor will stop the affected Work and notify Owner; the added scope and cost will be handled by a signed Change Order **before** proceeding. Hazardous-material (asbestos/lead/mold) abatement is excluded and is Owner's responsibility.

7. CHANGE ORDERS

Any change to the Work, price, or schedule must be in a **written Change Order signed by both Parties before** the changed work proceeds. Contractor is not obligated to perform extra work without a signed Change Order. Verbal changes are not binding.

8. OWNER RESPONSIBILITIES

Owner shall: purchase materials on time; provide site access and utilities; keep the work area reasonably clear; make timely selections and payments; remove or secure valuables, and keep pets out of the work area; maintain homeowner's property insurance; and disclose known hidden conditions. Owner warrants authority to authorize the Work at the Property.

9. LIMITED WARRANTY

Contractor warrants its **installation workmanship** against defects for **one (1) year** from Substantial Completion. Contractor's sole obligation is to correct defective workmanship at no labor charge; Owner supplies any replacement materials (materials being Owner-purchased). This warranty **excludes** Owner-supplied material defects (covered by manufacturer), normal wear, settlement/movement, alteration or misuse by Owner or others, lack of maintenance, and damage from conditions outside Contractor's Work. This is the only warranty and, to the extent allowed by law, replaces all implied warranties.

10. SUSPENSION / STOP WORK FOR NON-PAYMENT

If Owner fails to make any payment when due, or fails to supply materials needed to proceed, Contractor may — after three (3) days' written notice —

suspend Work without penalty until paid or cured, with the schedule extended accordingly, and recover reasonable remobilization costs.

11. LIMITATION OF LIABILITY

Contractor's total liability under this Contract shall not exceed the Contract Price actually paid to Contractor. Contractor is not liable for indirect, incidental, or consequential damages, nor for defects or failures arising from Owner-supplied materials, Owner-directed methods, or the acts of trades/contractors not hired by Contractor.

12. INSURANCE

Contractor carries general liability insurance and, where it has employees, workers' compensation as required by New York law. Certificates available on request. Owner shall maintain property/homeowner's insurance on the structure and contents.

13. INDEMNIFICATION

Each Party indemnifies the other for third-party claims of bodily injury or property damage to the extent caused by that Party's negligence. Owner indemnifies Contractor for claims arising from Owner-supplied materials and from concealed/undisclosed conditions not caused by Contractor's negligence.

14. NEW YORK STATUTORY NOTICES

Mechanic's Lien: "Contractors and subcontractors who perform work or furnish materials may have the right to file a mechanic's lien against the property if they are not paid." **Trust Funds (Lien Law Art. 3-A):** Payments received by Contractor are trust funds to be applied first to the cost of this improvement.

15. RIGHT TO CANCEL

Owner may cancel this Contract without penalty within **three (3) business days** of signing by delivering written notice to Contractor.

16. TERMINATION

If either Party materially breaches and fails to cure within ten (10) days of written notice, the other may terminate. On termination, Contractor is paid for all Work performed and costs incurred through the termination date.

17. DISPUTE RESOLUTION & GOVERNING LAW

The Parties will first negotiate in good faith, then submit any unresolved dispute to mediation, and if still unresolved, to binding arbitration or the courts of _____ County, New York. This Contract is governed by the laws of the State of New York. The prevailing party is entitled to reasonable attorneys' fees and costs.

18. ENTIRE AGREEMENT

This Contract, together with any signed Change Orders, is the entire agreement and supersedes all prior discussions. It may be modified only in a writing signed by both Parties. If any provision is unenforceable, the remainder stays in effect.

SIGNATURES

CONTRACTOR Signature: _____ Date: _____ Print name / title: _____

OWNER Signature: _____ Date: _____ Print name: _____
_____ Macone

Signature: _____ Date: _____ Print name: _____
_____ Macone

Template prepared as an industry-standard New York home-improvement agreement drafted to protect the Contractor. Have a local attorney review before signing — home-improvement contract rules vary by county and this is not legal advice.